TITLE COMMITMENT

Quarry Inn & Suites | Charlotte, NC

Commitment No.	TC-43434343
Property	Quarry Inn & Suites, 998 Harbor Boulevard, Charlotte, NC 69742
Proposed Insured	Vireo Income Properties
Effective Date	July 4, 2021

1. Schedule A - Commitment. Effective Date: July 4, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $27,170,000. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

2. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

3. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Vireo Income Properties. Provide evidence of authority of signatories. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

4. Schedule B-II - Exception. Taxes and assessments for the year 2024 and subsequent years, a lien not yet due and payable. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

5. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 15, Page 15, Official Records of the county. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

6. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 101010, as amended. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

7. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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8. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

9. Schedule A - Commitment. Effective Date: July 4, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $27,170,000. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

10. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

11. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Vireo Income Properties. Provide evidence of authority of signatories. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

12. Schedule B-II - Exception. Taxes and assessments for the year 2020 and subsequent years, a lien not yet due and payable. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

13. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 17, Page 17, Official Records of the county. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

14. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 282828, as amended. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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15. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

16. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

17. Schedule A - Commitment. Effective Date: July 4, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $27,170,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

18. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

19. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Vireo Income Properties. Provide evidence of authority of signatories. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

20. Schedule B-II - Exception. Taxes and assessments for the year 2019 and subsequent years, a lien not yet due and payable. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

21. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 29, Page 29, Official Records of the county. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

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22. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 333, as amended. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

23. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

24. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

25. Schedule A - Commitment. Effective Date: July 4, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $27,170,000. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

26. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

27. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Vireo Income Properties. Provide evidence of authority of signatories. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

28. Schedule B-II - Exception. Taxes and assessments for the year 2025 and subsequent years, a lien not yet due and payable. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

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29. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 35, Page 35, Official Records of the county. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

30. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 202020, as amended. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

31. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

32. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

33. Schedule A - Commitment. Effective Date: July 4, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $27,170,000. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

34. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

35. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Vireo Income Properties. Provide evidence of authority of signatories. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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36. Schedule B-II - Exception. Taxes and assessments for the year 2024 and subsequent years, a lien not yet due and payable. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

37. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 19, Page 19, Official Records of the county. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

38. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 888, as amended. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

39. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

40. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

41. Schedule A - Commitment. Effective Date: July 4, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $27,170,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

42. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

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43. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Vireo Income Properties. Provide evidence of authority of signatories. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

44. Schedule B-II - Exception. Taxes and assessments for the year 2023 and subsequent years, a lien not yet due and payable. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

45. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 39, Page 39, Official Records of the county. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

46. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 404040, as amended. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

47. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. Time is of the essence with respect to each and every provision of this instrument.

48. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

49. Schedule A - Commitment. Effective Date: July 4, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $27,170,000. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

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50. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

51. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Vireo Income Properties. Provide evidence of authority of signatories. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

52. Schedule B-II - Exception. Taxes and assessments for the year 2023 and subsequent years, a lien not yet due and payable. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

53. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 27, Page 27, Official Records of the county. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

54. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 101010, as amended. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

55. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

56. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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57. Schedule A - Commitment. Effective Date: July 4, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $27,170,000. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

58. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

59. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Vireo Income Properties. Provide evidence of authority of signatories. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

60. Schedule B-II - Exception. Taxes and assessments for the year 2021 and subsequent years, a lien not yet due and payable. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

61. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 42, Page 42, Official Records of the county. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

62. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 242424, as amended. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

63. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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64. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

65. Schedule A - Commitment. Effective Date: July 4, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $27,170,000. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

66. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

67. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Vireo Income Properties. Provide evidence of authority of signatories. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

68. Schedule B-II - Exception. Taxes and assessments for the year 2023 and subsequent years, a lien not yet due and payable. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

69. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 45, Page 45, Official Records of the county. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

70. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 222, as amended. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

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71. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

72. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

73. Schedule A - Commitment. Effective Date: July 4, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $27,170,000. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

74. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

75. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Vireo Income Properties. Provide evidence of authority of signatories. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

76. Schedule B-II - Exception. Taxes and assessments for the year 2020 and subsequent years, a lien not yet due and payable. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

77. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 8, Page 8, Official Records of the county. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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78. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 444, as amended. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

79. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

80. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

81. Schedule A - Commitment. Effective Date: July 4, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $27,170,000. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

82. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

83. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Vireo Income Properties. Provide evidence of authority of signatories. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

84. Schedule B-II - Exception. Taxes and assessments for the year 2020 and subsequent years, a lien not yet due and payable. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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85. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 19, Page 19, Official Records of the county. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

86. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 363636, as amended. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

87. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

88. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

89. Schedule A - Commitment. Effective Date: July 4, 2021. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Vireo Income Properties. Amount of Insurance: $27,170,000. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

90. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Ellison Crest Realty. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

91. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Ellison Crest Realty to Vireo Income Properties. Provide evidence of authority of signatories. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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